

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
BERT SPAAN,

Index No.

Plaintiff

SUMMONS

-against-

Plaintiff designates KINGS
COUNTY as the place of trial.

THE CITY OF NEW YORK and THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JAFFREY AND POLICE OFFICER JOHN AND JANE
DOES 1-3.

The basis of venue is place of
occurrence.

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 10, 2018

Bell Law PLLC
Attorneys for Plaintiff

/s/ Henry Bell
By: Henry Bell
747 Third Avenue, Second Floor
New York, NY 10017
347-951-7743

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BERT SPAAN,

Index No.

Plaintiff

COMPLAINT

-against-

THE CITY OF NEW YORK and THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
JAFFREY AND POLICE OFFICER JOHN AND JANE
DOES 1-3.

Defendants.

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TO THE SUPREME COURT OF THE STATE OF NEW YORK

The complaint of the plaintiff, Bert Spaan, respectfully shows and alleges as follows:

1. The Plaintiff herein, Bert Spaan, is a resident of The Netherlands at the time of the commencement of this action resided in The Netherlands.
2. Upon information and belief, Defendant The City of New York ("The City"), was and still is a municipal corporation duly organized and existing under the laws of the State of New York.
3. Upon information and belief, The City, its agents, servants, employees and/or licensees operated, maintained and controlled the New York City Police Department ("The NYPD"), including all the police officers thereof.
4. Upon information and belief, The NYPD, its agents, servants, and employees, supervised, maintained, and controlled its personnel.
5. Upon information and belief, Defendant Jaffrey and John and Jane Does 1-2 were and still are employed by The NYPD and is a resident of the State of New York, Kings County.
6. A Notice of Claim was filed within 90 days of the occurrence alleged herein.

7. More than 30 days have elapsed since the Notice of Claim was served upon the defendants and defendants have neglected or refused to make any adjustment or payment thereof.

8. This action is commenced within one year and 90 days after the cause of action arose.

9. On or about May 24, 2017, Jaffrey and John and Jane Does 1-2 detained Spaan at 674 Myrtle Avenue, Brooklyn, New York, 11205, which is within the confines of the 79th Precinct and Police Service Area 3 of the New York City Police Department.

10. Immediately prior to his detention, Mr. Spaan was biking eastbound on Myrtle Avenue in the direction of traffic between automobiles that were parked at the curb to his immediate right and vehicular traffic to his immediate left.

11. As Mr. Spaan approached the intersection of Skillman Street on Myrtle Avenue, a sport utility vehicle ("SUV"), abruptly turned in front of Mr. Spaan and into his path of travel without any prior indication such as a turn signal.

12. As a result of the abrupt actions of the driver of the SUV, Mr. Spaan was forced to turn his bicycle quickly towards the curb nearly crashing.

13. Thereafter, Mr. Spaan continued bicycling eastbound on Myrtle Avenue across Skillman Street.

14. As Mr. Spaan crossed the intersection, the SUV, which was an NYPD vehicle, engaged its siren. Mr. Spaan stopped on the other side of the intersection at the curb where he was surrounded by three NYPD police officers, Police Officer Jaffrey and Police Officer John/Jane Doe 1 and 2.

15. After being detained by the three NYPD police officers for approximately 30 minutes, Mr. Spaan was falsely issued a Summons for allegedly committing the crime of

Disorderly Conduct in violation of Penal Law Section 240.20(5) to wit: “I did observe the deft (sic) creat (sic) a hazardous and physically offensive condition by hitting RMP with hand while on bike and blocking vehicular traffic while sitting on bike causing traffic to stop and go around deft (sic) creating a hazardous condition” and “stop(sic) on Myrtle Ave causing vehicle traffic to drive around deft (sic) without due cause and creating a hazardous condition.”

16. Mr. Spaan was detained without probable cause.

17. The Criminal Court Appearance Ticket, which was signed by Police Officer Jaffrey, directed Mr. Spaan to appear at One Centre Street, New York, New York. Mr. Spaan appeared on August 25, 2017

18. On December 1, 2017, in the case against Mr. Spaan was dismissed and sealed.

19. The unlawful conduct of the New York City Police Department for falsely issued a Summons violated New York and federal law and entitles Mr. Spaan to compensatory and punitive damages under 42 U.S.C. § 1983, a federal statute authorizing a civil rights lawsuit based on such conduct.

FIRST CAUSE OF ACTION
(False Arrest Under State Law; All Defendants)

20. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

21. Defendants, individually and acting in concert and/or aiding and abetting each other, intended to confine Plaintiff.

22. Plaintiff was conscious of that confinement and did not consent to it.

23. The confinement was not privileged and made in disregard of overwhelming evidence of Plaintiff's innocence. As a result of defendants' actions, Plaintiff suffered damages.

SECOND CAUSE OF ACTION
(Malicious Prosecution Under State Law; All Defendants)

24. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

25. By virtue of the foregoing, defendants, acting in concert with and aiding and abetting each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

26. The criminal proceedings terminated in Plaintiff's favor.

27. There was no probable cause for the commencement or the continuation of the criminal proceedings.

28. The defendants acted with actual malice.

29. The City is liable for defendant's actions under the principle of *respondeat superior*.

THIRD CAUSE OF ACTION
(Intentional Infliction of Emotional Distress Under State Law; All Defendants)

30. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

31. Defendants engaged in a continuous pattern of extreme and outrageous conduct directed at Plaintiff until at least December 1, 2017, when the charge against Plaintiff was dismissed

32. Defendants engaged in that pattern of conduct with an intention to cause or in reckless disregard of the substantial probability that it would cause, Plaintiff severe emotional distress.

33. Specifically, defendants, individually and conspiring, acting in concert with and/or aiding and abetting one another and other persons for whose acts they are liable, created false official records to be used against Plaintiff, initiated or caused the initiation and continuation of false and unfounded criminal charges against Plaintiff while lacking probable cause to do so.

34. Plaintiff suffered severe emotional distress as a result of defendants' actions.

35. By virtue of the foregoing, Plaintiff suffered actual and special damages.

36. The City is liable for defendant's actions under the principle of *respondeat superior*.

FIFTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision; Defendant City of New York)

37. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

38. By virtue of the foregoing, defendant City of New York is liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or grossly negligent hiring, retention and supervision of its agents, servants and/or NYPD employees with regard to their duties, including:

- (a) the duty not to use false, misleading or unreliable evidence;
- (b) the continuing obligation to correct false, inaccurate, incomplete or misleading evidence and statements; and
- (c) the continuing duty to obtain, to preserve and to make timely disclosure to the appropriate parties, including the court and prosecutors, during criminal investigations and prosecutions, of all material evidence or information favorable to a person suspected, accused or convicted of criminal conduct, including exculpatory evidence as well as evidence impeaching the credibility or undercutting the reliability of prosecution witnesses and including verbal as well as recorded information.

39. Policymaking and supervisory officials for the New York City Police Department and the City had legal and constitutional obligations to prevent their employees from violating the above duties. Those policymakers and officials had knowledge and notice that adequate policies regarding hiring, retention and supervision were necessary with respect to rank and file police officers and their supervisors and that failing to implement such policies would result in the violation of the constitutional rights of individuals investigated and arrested by the NYPD

40. By virtue of the foregoing, Plaintiff suffered actual damages.

EIGHTH CAUSE OF ACTION

(42 U.S.C. §1983; Malicious Prosecution; Wrongful Arrest And Detention; Evidence Manufacturing; Denial of A Fair Trial; and Deprivation of Liberty Under the Fourth, Fifth, Sixth and Fourteenth Amendments; All Defendants)

41. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

42. Defendants, without probable cause and in disregard of overwhelming evidence of Plaintiff's innocence, wrongfully detained him and wrongfully issued him a Summons.

43. Moreover, defendants, in absence of probable cause for Plaintiff's continued seizure, continued the seizure by submitting the false criminal complaint to prosecutors and the Kings County Summons Court and Kings Criminal Court, which continued the charges against Plaintiff and his detention and/or seizure, requiring Plaintiff to repeatedly appear in court to defend against the charges over a period of several months.

44. PO Jaffrey, acting in concert and aiding and abetting the other, created false police and complaint reports.

45. The misleading information contained in those false reports and the information omitted from them, was likely to influence a judge's decision.

46. Those defendants then forwarded those reports to prosecutors who in turn relied on them to commence formal criminal proceedings against Plaintiff.

47. Defendants' actions deprived Plaintiff of his right to not be prosecuted on fabricated evidence and to a fair trial under the Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution

48. The individual defendants, by virtue of the foregoing, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

49. The criminal proceedings terminated in Plaintiff's favor.

50. There was no probable cause for the commencement or the continuation of the criminal proceedings.

51. There was no probable cause for Plaintiff's initial detainment.

52. The Defendants acted with actual malice.

53. The aforesaid conduct operated to deprive Plaintiff of his rights under the Constitution and the Laws of the United States:

- (a) Not to be arrested, prosecuted, detained or imprisoned based upon false, fabricated, manufactured, misleading or inherently unreliable "evidence," including false allegations in violation of the Fourth and Fourteenth Amendments and the Due Process and Fair Trial Clauses of the Fifth, Sixth and Fourteenth Amendments, to the U.S. Constitution; and
- (b) Not to be deprived of his liberty absent probable cause to believe he has committed a crime, in violation of his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution.

54. The foregoing violations of Plaintiff's federal constitutional rights by the defendants, together with their co-conspirators and accomplices, known and unknown, directly,

substantially, proximately and foreseeably caused the continuation of Plaintiff's malicious prosecution without probable cause and his other injuries and damages.

55. The foregoing violations of Plaintiff's rights amounted to Constitutional torts and were affected by actions taken under color of state law and within the scope of the Defendants' employment and authority.

56. Defendants committed the foregoing violations of Plaintiff's rights knowingly, intentionally, willfully, recklessly, negligently and/or with deliberate indifference to Plaintiff's constitutional rights which are protected by 42 U.S.C. § 1983.

57. By reason of the foregoing, the defendants are liable for damages.

NINTH CAUSE OF ACTION

(Failure To Intervene; 42 U.S.C. § 1983; Fourth, Fifth and Fourteenth Amendments; PO Jaffrey and/or PO Doe 1-2)

58. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

59. Defendants, who were present at the scene and had direct knowledge of the violation of Plaintiff's Fourth, Fifth and Fourteenth Amendment rights through his wrongful arrest and detention and malicious prosecution, exhibited deliberate indifference and/or gross negligence concerning Plaintiff's rights by failing to intervene to prevent the violation of those rights by their peers and subordinates, even though they had legal and constitutional obligations to do so.

60. Rather than intervene, defendants directly participated in, ratified and aided and abetted, the violation of Plaintiff's constitutional rights as set forth above.

61. Each of the defendants had a realistic opportunity to intervene and prevent the harm Plaintiff suffered, a reasonable person in defendants' positions would know that

PLAINTIFF's rights were being violated and none of the defendants took reasonable steps to intervene.

62. The defendants, by virtue of the foregoing, are liable for damages.

TENTH CAUSE OF ACTION

**Claim Under 42 U.S.C. § 1983 for Violative Policies, Practices and Procedures
(Against The City of New York and The New York City Police Department)**

63. Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

64. The City of New York and The New York City Police Department had in effect, both before and at the time of the events alleged in this complaint, policies, practices, procedures, and customs which operated to deprive Plaintiff of his constitutional rights.

65. The City of New York and The New York City Police Department are liable under 42 U.S.C. § 1983 because they established policies, practices, procedures, and customs that were intended to and did encourage, endorse, and reward their agents and employees for violating the constitutional rights of Plaintiff and other similarly situated persons. At a minimum, the supervisors and the governmental units were deliberately indifferent to such constitutional violations.

WHEREFORE, the Plaintiff demands judgment that:

1. Plaintiff recover in an amount to be determined at trial but believed at present to be in excess of \$100,000;

2. Plaintiff recover in an amount to be determined at trial for punitive damages but believed at present to be in excess of \$100,000;

3. Plaintiff recover costs and disbursements of this action, together with reasonable attorney's fees jointly and severally from Defendants including reasonable attorney's fees pursuant to 42 U.S.C. § 1983;

4. Such other and further relief as this Court may deem just and proper.

Dated: New York, NY
July 10, 2018

Bell Law PLLC

/s/Henry Bell
By: Henry Bell
747 Third Ave, Second Floor
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SUMMONS AND COMPLAINT

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